

Notice of References Cited	Application/Control No. 14/622,732		Applicant(s)/Patent Under Reexamination MOHAMED ET AL.	
	Examiner Amy L. Clark		Art Unit 1655	Page 1 of 1

U.S. PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Name	CPC Classification	US Classification
	A	US-				
	B	US-				
	C	US-				
	D	US-				
	E	US-				
	F	US-				
	G	US-				
	H	US-				
	I	US-				
	J	US-				
	K	US-				
	L	US-				
	M	US-				

FOREIGN PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Country	Name	CPC Classification
	N					
	O					
	P					
	Q					
	R					
	S					
	T					

NON-PATENT DOCUMENTS

*		Include as applicable: Author, Title Date, Publisher, Edition or Volume, Pertinent Pages)
	U	Mudaliar, K. "Avarai Nei" from Athmarakshaamirtham, Pub: Ilakkana Achagam, chennai (1897), pp. 536-537. Retrieved from: TKDL on 9/8/2016.
	V	"Nursing times". "The administration of medicines". Internet publication date: 2007-11-19 [Retrieved from the Internet on: 2016-09-09]. Retrieved from the Internet: <URL: https://www.nursingtimes.net/clinical-archive/medicine-management/the-administration-of-medicines/288560.article >.
	W	
	X	

*A copy of this reference is not being furnished with this Office action. (See MPEP § 707.05(a).)
Dates in MM-YYYY format are publication dates. Classifications may be US or foreign.



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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
14/622,732	02/13/2015	Suhaila MOHAMED	K1067.10014US02	3936
97149	7590	09/15/2016	EXAMINER	
Maschoff Brennan 1389 Center Drive, Suite 300 Park City, UT 84098			CLARK, AMY LYNN	
			ART UNIT	PAPER NUMBER
			1655	
			NOTIFICATION DATE	DELIVERY MODE
			09/15/2016	ELECTRONIC

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

docket@mabr.com
info@mabr.com

Office Action Summary	Application No. 14/622,732	Applicant(s) MOHAMED ET AL.	
	Examiner Amy L. Clark	Art Unit 1655	AIA (First Inventor to File) Status No

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTHS FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

- 1) ☒ Responsive to communication(s) filed on 5/18/2015.
☐ A declaration(s)/affidavit(s) under **37 CFR 1.130(b)** was/were filed on _____.
- 2a) ☐ This action is **FINAL**. 2b) ☒ This action is non-final.
- 3) ☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.
- 4) ☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims*

- 5) ☒ Claim(s) 1-11 is/are pending in the application.
5a) Of the above claim(s) _____ is/are withdrawn from consideration.
- 6) ☐ Claim(s) _____ is/are allowed.
- 7) ☒ Claim(s) 1-11 is/are rejected.
- 8) ☐ Claim(s) _____ is/are objected to.
- 9) ☐ Claim(s) _____ are subject to restriction and/or election requirement.

* If any claims have been determined allowable, you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to PPHfeedback@uspto.gov.

Application Papers

- 10) ☐ The specification is objected to by the Examiner.
- 11) ☒ The drawing(s) filed on 2/13/2015 is/are: a) ☒ accepted or b) ☐ objected to by the Examiner.
Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).
Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

Priority under 35 U.S.C. § 119

- 12) ☒ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

Certified copies:

- a) ☒ All b) ☐ Some** c) ☐ None of the:
1. ☐ Certified copies of the priority documents have been received.
 2. ☒ Certified copies of the priority documents have been received in Application No. 13/260,188.
 3. ☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

** See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

- | | |
|--|---|
| 1) ☒ Notice of References Cited (PTO-892) | 3) ☐ Interview Summary (PTO-413)
Paper No(s)/Mail Date. _____ |
| 2) ☒ Information Disclosure Statement(s) (PTO/SB/08a and/or PTO/SB/08b)
Paper No(s)/Mail Date _____ | 4) ☐ Other: _____ |

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The present application is being examined under the pre-AIA first to invent provisions.

DETAILED ACTION

Claim Objections

Claim 3 is objected to because of the following informalities: the term "Pheonix" in line 2 is misspelled. Appropriate correction is required.

Claim Rejections - 35 USC § 102

The following is a quotation of the appropriate paragraphs of pre-AIA 35 U.S.C. 102 that form the basis for the rejections under this section made in this Office action:

A person shall be entitled to a patent unless –

(b) the invention was patented or described in a printed publication in this or a foreign country or in public use or on sale in this country, more than one year prior to the date of application for patent in the United States.

Claim(s) 1-10 is/are rejected under pre-AIA 35 U.S.C. 102(b) as being anticipated by Mudaliar (U).

Mudaliar teaches a composition comprising cocos nucifera leaf decoction obtained by combining cocos nucifera leaves with water (which reads on aqueous extract) for treating diabetes and that the composition is first formulated and is then orally administered.

Although Mudaliar does not teach that the extract includes biophenols, proteins, lipids, saccharides, minerals and small peptides, that the extract reduces blood sugar, inhibits oxidative stress, inhibits diabetic complications or that the extract inhibits specific complications in diabetic patients, the claimed functional properties are inherent to the extract taught by Mudaliar because the ingredients, the amounts of the ingredients, and the route of administration for the delivery of the ingredients taught by Mudaliar are one and the same as disclosed in the instantly claimed invention of Applicant. Thus, the extract taught by Mudaliar inherently has the same properties as claimed by Applicant.

Therefore, the reference anticipates the instantly claimed invention.

Claim Rejections - 35 USC § 103

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The following is a quotation of pre-AIA 35 U.S.C. 103(a) which forms the basis for all obviousness rejections set forth in this Office action:

(a) A patent may not be obtained though the invention is not identically disclosed or described as set forth in section 102, if the differences between the subject matter sought to be patented and the prior art are such that the subject matter as a whole would have been obvious at the time the invention was made to a person having ordinary skill in the art to which said subject matter pertains. Patentability shall not be negated by the manner in which the invention was made.

This application currently names joint inventors. In considering patentability of the claims under pre-AIA 35 U.S.C. 103(a), the examiner presumes that the subject matter of the various claims was commonly owned at the time any inventions covered therein were made absent any evidence to the contrary. Applicant is advised of the obligation under 37 CFR 1.56 to point out the inventor and invention dates of each claim that was not commonly owned at the time a later invention was made in order for the examiner to consider the applicability of pre-AIA 35 U.S.C. 103(c) and potential pre-AIA 35 U.S.C. 102(e), (f) or (g) prior art under pre-AIA 35 U.S.C. 103(a).

Claims 1-11 are rejected under pre-AIA 35 U.S.C. 103(a) as being unpatentable over Mudaliar (U), in view of "Nursing times"(V).

The teachings of Mudaliar are set forth above and applied as before.

Mudaliar does not teach topical application of the composition.

"Nursing times" teaches that the form of administration of a drug is based upon the bioavailability of the drug and most effective route of administration. "Nursing times" teaches that topical administration is an effective form for locally administering medication.

It would have been obvious to modify the method by which the composition the composition is administered because at the time the invention was made, it was known that a composition comprising cocos nucifera leaf decoction is effective for treating diabetes and that medication can be either orally or topically administered as clearly taught by the above references.

Thus, an artisan of ordinary skill would reasonably expect that topically applying a composition comprising cocos nucifera leaf decoction would be more effective for treating diabetes and symptoms of diabetes by locally administering the medication to the desired site. This reasonable expectation of success would motivate the artisan to use a composition comprising cocos nucifera leaf decoction is

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effective for treating diabetes for treating diabetes and its symptoms by locally administering the formulation based upon the beneficial teachings of the above references.

The result-effective adjustment of particular conventional working conditions (e.g., determining the most effective way to administer medication to a person in need) is deemed merely a matter of judicious selection and routine optimization which is well within the purview of the skilled artisan.

Based upon the beneficial teachings of the cited references, the skill of one of ordinary skill in the art, and absent evidence to the contrary, there would have been a reasonable expectation of success to result in the claimed invention.

Accordingly, the claimed invention was prima facie obvious to one of ordinary skill in the art at the time the invention was made, especially in the absence of evidence to the contrary.

Conclusion

No claims are allowed.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to Amy L. Clark whose telephone number is (571)272-1310. The examiner can normally be reached on Monday to Friday 7 am to 3:30 pm.

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, Terry McKelvey can be reached on (571)272-0775. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

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Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://pair-direct.uspto.gov>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/Amy L Clark/
Primary Examiner, Art Unit 1655